

UPSC GS-II POLITY

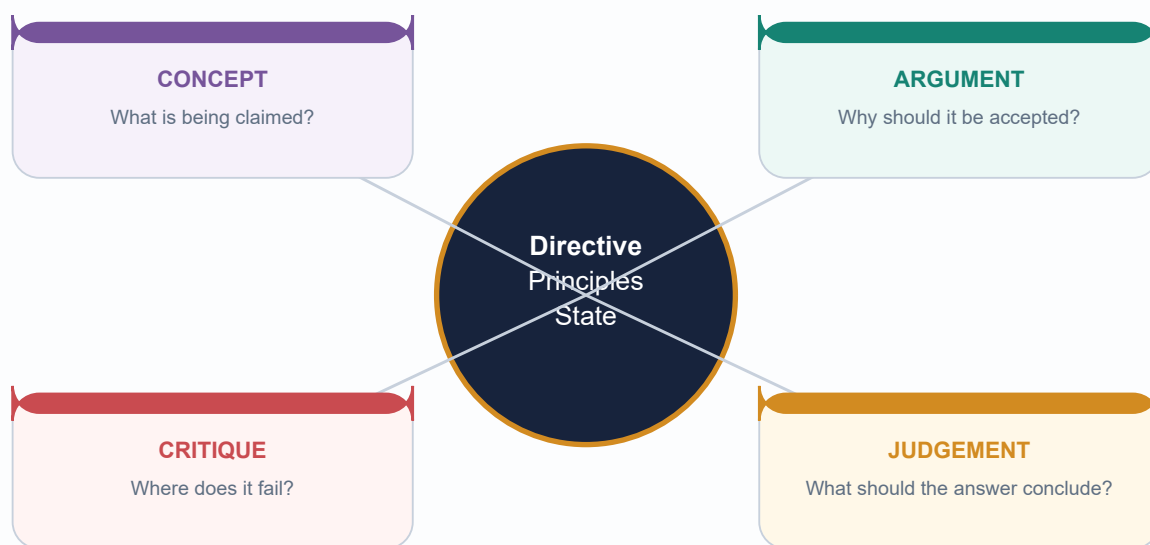
Directive Principles of State Policy

Integrated Basic + Advanced Course

11 deep-learning modules | Article 36 to the 2024 Property Owners Association ruling

Visual case-law timelines, classification maps, comparisons, UPSC traps and Mains frameworks

Prepared from the verified Polity knowledge base and the completed guided session



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Meaning, Nature and the Constitutional Sanction of DPSP

GS-II Polity -
DPSP Origin

NEWS TRIGGER

Recurring demands that courts compel governments to fulfil welfare promises make it essential to understand why the framers deliberately kept certain socio-economic ideals outside judicial enforcement.

INTRO & ORIGIN

Part IV of the Constitution, Articles 36 to 51, contains the Directive Principles of State Policy. They were borrowed from the Irish Constitution of 1937, which had itself adapted the idea from Spain. Dr. Ambedkar described them as 'novel features', while Granville Austin called Fundamental Rights and DPSP together the philosophy and the 'Conscience of the Constitution'.

Article 36 gives 'State' the same wide meaning as in Part III, covering the legislative and executive organs of the Union, the states, local bodies and other public authorities, so the directives bind government at every level.

TIMELINE

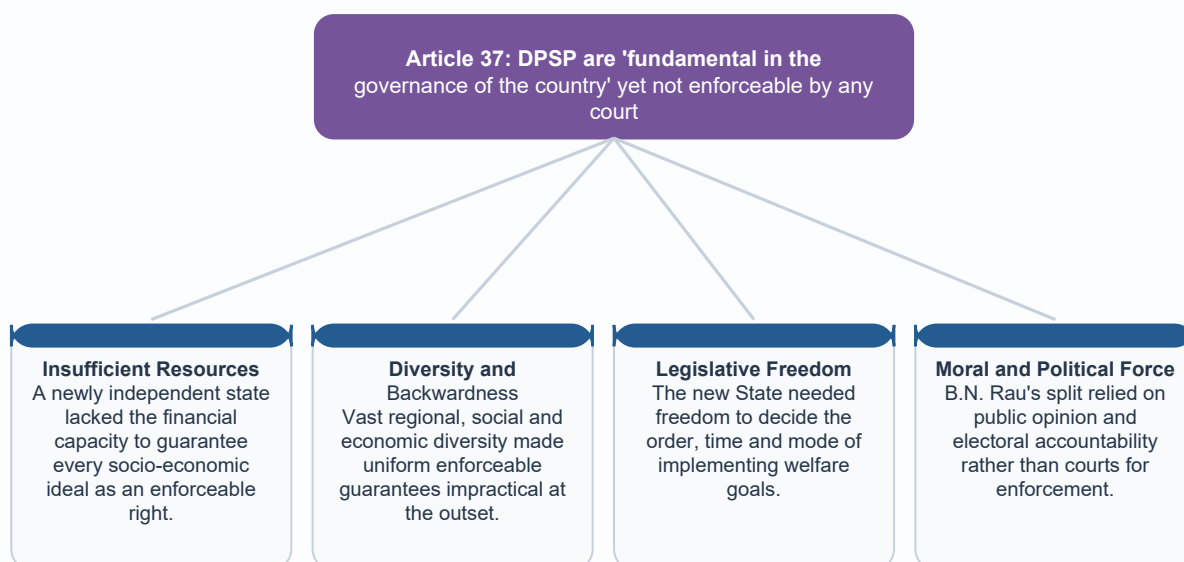
1937 — Irish Free State Constitution introduces non-justiciable directive principles, itself influenced by Spain.

1948 — Sir B.N. Rau recommends splitting rights into justiciable (Part III) and non-justiciable (Part IV) categories.

1949 — Constituent Assembly adopts Part IV, Articles 36-51, as principles fundamental in governance.

1976 — 42nd Amendment inserts four new directive principles into Part IV.

WHY THE FRAMERS MADE DPSP NON-JUSTICIABLE



KEY DATA

Feature	Position
Location	Part IV, Articles 36-51
Borrowed from	Irish Constitution, 1937 (Ireland had borrowed from Spain)
Justiciability	Non-justiciable under Article 37
Naming	'Novel features' - Ambedkar; 'Conscience of the Constitution' - Austin
Judicial use	Can help courts treat an implementing law as reasonable under Articles 14 and 19

STATIC THEORY

- DPSP are addressed to the State exactly as defined for Fundamental Rights in Article 36, so no organ of government is exempt from their guidance.
- They resemble the 'Instrument of Instructions' under the Government of India Act, 1935, except the instructions now run to the legislature and executive rather than to the Governor-General.
- A comprehensive economic, social and political programme underlies Part IV, aimed at building a welfare state rather than a mere police state.
- Article 37 makes the directives non-justiciable yet simultaneously 'fundamental in governance', creating a moral rather than a legal duty on the State.
- A law giving effect to a directive may be treated by courts as a 'reasonable' restriction under Articles 14 and 19, so DPSP indirectly acquire legal relevance through judicial interpretation.

MEMORY HOOK

IRELAND gave the IDEA, RAU gave the SPLIT, ARTICLE 37 gave the DUTY without a COURT REMEDY.

MUST-KNOW FACTS

1. DPSP occupy Part IV, Articles 36 to 51, and were borrowed from the Irish Constitution of 1937.
2. Article 37 declares DPSP non-justiciable but 'fundamental in the governance of the country'.
3. Dr. Ambedkar called DPSP a 'novel feature'; Granville Austin called FR and DPSP together the 'Conscience of the Constitution'.
4. Sir B.N. Rau proposed the justiciable / non-justiciable split that the Drafting Committee adopted.

UPSC TRAPS

WRONG: DPSP were borrowed from the United States Constitution.

CORRECT: They were borrowed from Ireland (1937), which had itself copied the idea from Spain.

WRONG: Non-justiciable means DPSP have no legal relevance at all.

CORRECT: Courts can use a law implementing a DPSP to justify reasonable restrictions under Articles 14 and 19.

MAINS ANGLE

Use the resource-scarcity and diversity rationale to explain why the framers chose moral rather than legal sanction for DPSP, while showing how judicial interpretation has since given them indirect legal weight.

STUDY LINK

Polity -> Fundamental Rights -> Articles 13, 14, 19 | Polity -> Historical Background -> Government of India Act, 1935

HIGH

The Three-Fold Classification of Directive Principles

GS-II Polity -
DPSP
Classification

NEWS TRIGGER

Prelims regularly tests which article belongs to which category, since the Constitution itself does not label the three groups that textbooks use for teaching convenience.

INTRO & ORIGIN

M. Laxmikant's classification (not found verbatim in the constitutional text) groups the 20-odd directives into Socialistic, Gandhian and Liberal-Intellectual principles. This grouping tracks the ideological currents that shaped the freedom movement: social-economic justice, village self-reliance, and a modern liberal state.

Socialistic principles dominate numerically because Part IV was drafted when building an equitable economic order was the Assembly's central preoccupation, alongside the rural focus inherited from Gandhian constructive work.

TIMELINE

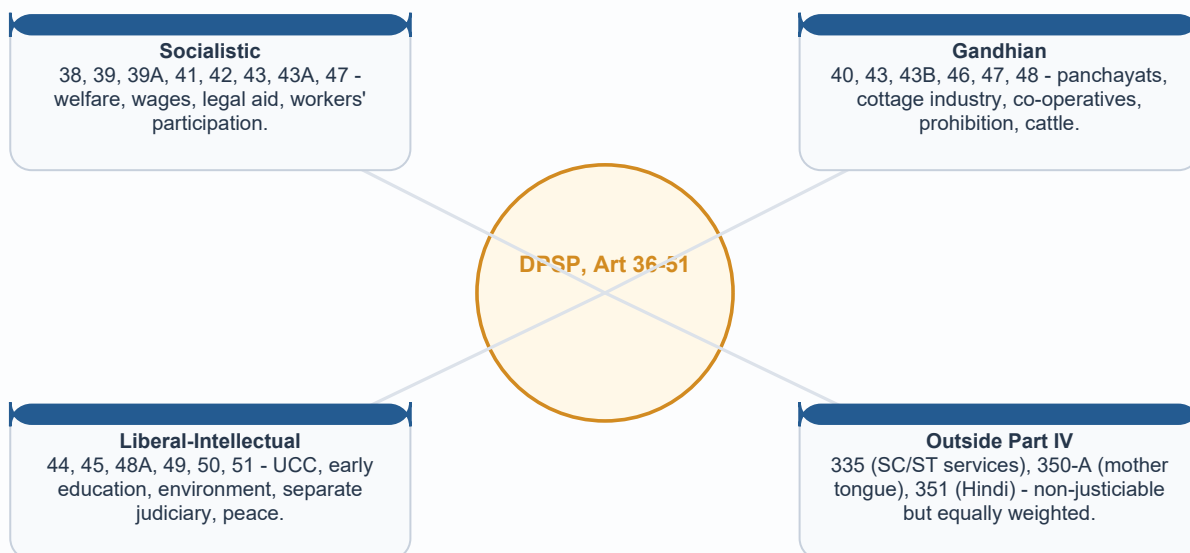
Art 38, 39, 39A — Socialistic - social order, material distribution, equal pay, legal aid.

Art 40, 43, 43B, 46, 48 — Gandhian - panchayats, cottage industry, co-operatives, weaker sections, cow protection.

Art 44, 45, 48A, 50, 51 — Liberal-Intellectual - UCC, education, environment, judicial separation, world peace.

Art 335, 350-A, 351 — Directives outside Part IV - equally weighted but placed in other Parts.

WHERE EACH HIGH-FREQUENCY ARTICLE BELONGS



STATIC THEORY

- Article 39A (free legal aid), 43A (workers in management) and 48A (environment) sound socialistic or liberal but were all added later by the 42nd Amendment - a frequent trap.
- Article 44 (Uniform Civil Code) belongs to the liberal-intellectual group, while Article 40 (panchayats) belongs to the Gandhian group - the two are often confused because both concern social organisation.
- Article 48 covers two different ideas: modern scientific agriculture (liberal-intellectual) and prohibition of cow slaughter (Gandhian) - so the same article number can appear in two categories.
- Directives outside Part IV (335, 350-A, 351) remain non-justiciable but are treated as equally important as Part IV directives in governance practice.

MEMORY HOOK

Mnemonic (Gandhian): PC-CoW -> Panchayats, Cottage industry, Co-operatives, Weaker sections, prohibition, cow protection.

MUST-KNOW FACTS

1. Article 40 mandates village panchayats; Article 44 mandates a Uniform Civil Code; Article 50 mandates separation of judiciary from the executive.
2. Article 48A (environment) was inserted by the 42nd Amendment, 1976 - not present in the original text.
3. Article 45 was changed by the 86th Amendment, 2002, to cover early-childhood care for children below six, after elementary education became a Fundamental Right under Article 21A.

UPSC TRAPS

WRONG: Article 44 (UCC) is a Gandhian principle.

CORRECT: It is liberal-intellectual; Article 40 (panchayats) is the Gandhian one.

WRONG: Free legal aid (39A) and environment protection (48A) were part of the original 1949 text.

CORRECT: Both were added by the 42nd Amendment, 1976.

MAINS ANGLE

When an answer must classify a directive, state the category and immediately flag whether it is an original 1949 provision or a later amendment insertion - examiners reward this precision.

STUDY LINK

Polity -> Panchayati Raj -> Article 40 | Polity
-> Fundamental Rights -> Article 21A

HIGH

Amendments That Expanded the Directive Principles

GS-II Polity -
DPSP
Amendments

NEWS TRIGGER

Legal aid expansion, workers' participation debates and environmental litigation regularly trace back to the specific amendments that inserted these directives.

INTRO & ORIGIN

Four amendments enlarged Part IV after 1949: the 42nd Amendment added the largest single batch, followed by targeted insertions in 1978, 2002 and 2011. Each addition reflects a distinct policy concern of its era - Emergency-era welfare expansion, judicial correction, education reform and cooperative federalism.

The sequence shows Parliament using Article 368 to keep Part IV a living document responsive to new social and economic priorities rather than a fixed 1949 text.

TIMELINE

1976 — 42nd Amendment adds Art 39(f), 39A, 43A and 48A - four new directives.

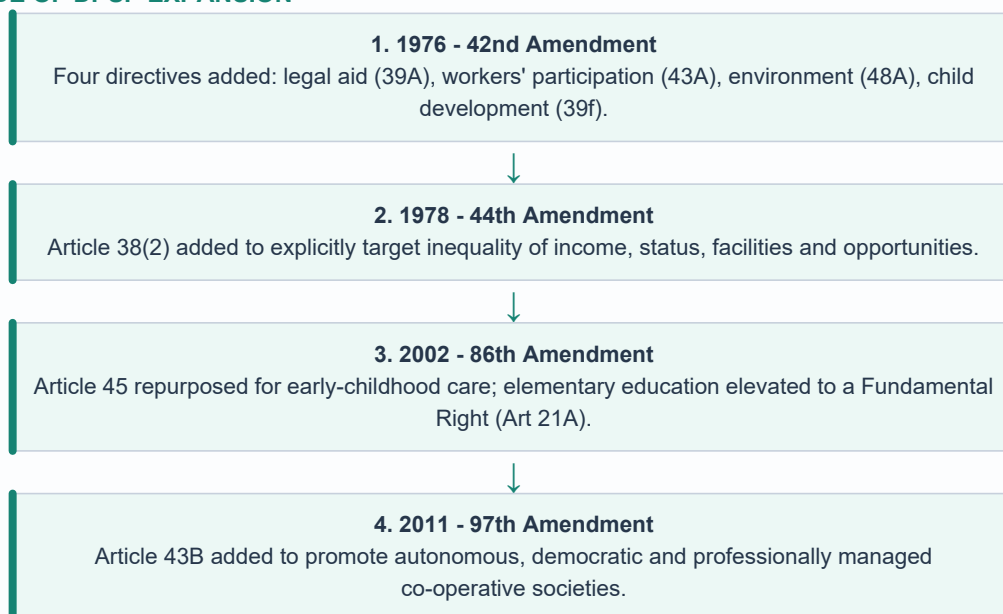
1978 — 44th Amendment adds Art 38(2) - minimise inequalities in income, status, facilities and opportunities.

2002 — 86th Amendment changes Art 45 to early-childhood care (below six); elementary education becomes Art 21A.

2011 — 97th Amendment adds Art 43B - promotion of co-operative societies.

KEY DATA

Amendment	Article(s) added/changed	Policy concern
42nd (1976)	39(f), 39A, 43A, 48A	Child welfare, legal aid, industrial democracy, environment
44th (1978)	38(2)	Reduce inequality of income, status, facilities and opportunities
86th (2002)	45 (recast)	Early-childhood care; elementary education moved to Art 21A
97th (2011)	43B	Autonomous and democratic co-operative societies

SEQUENCE OF DPSP EXPANSION

STATIC THEORY

- The 42nd Amendment's four insertions were driven by the same Emergency-era welfare philosophy that also tried (unsuccessfully, per *Minerva Mills*) to give all DPSP primacy over Fundamental Rights via Article 31C.
- The 86th Amendment is the pivotal link between DPSP and Fundamental Rights: it did not merely amend Article 45, it simultaneously created the enforceable Article 21A for children aged six to fourteen.
- The 97th Amendment on co-operatives (Article 43B) was later found by the Supreme Court to have partly exceeded permissible limits regarding state-level cooperative provisions, but the DPSP insertion itself stands.

MEMORY HOOK

1976 FOUR, 1978 ONE (38-2), 2002 EDUCATION SPLIT (45 to 21A), 2011 CO-OPERATIVES (43B).

MUST-KNOW FACTS

1. The 42nd Amendment (1976) added the largest single batch of four new directives to Part IV.
2. The 86th Amendment (2002) simultaneously changed Article 45 and created Article 21A.
3. The 97th Amendment (2011) inserted Article 43B on co-operative societies.

UPSC TRAPS

WRONG: Article 21A and the amended Article 45 were created by different amendments.

CORRECT: Both changes came from the single 86th Amendment, 2002.

WRONG: Article 48A has existed in the Constitution since 1949.

CORRECT: It was inserted only in 1976 by the 42nd Amendment.

MAINS ANGLE

Show how each amendment responded to a specific gap - Emergency-era welfare gaps in 1976, inequality language in 1978, universal elementary education in 2002, and cooperative federalism in 2011.

STUDY LINK

Polity -> Fundamental Rights -> Article 21A |
Polity -> Cooperative Societies -> 97th Amendment

HIGH

Fundamental Rights and DPSP - Two Models of Democracy

GS-II Polity - FR
vs DPSP

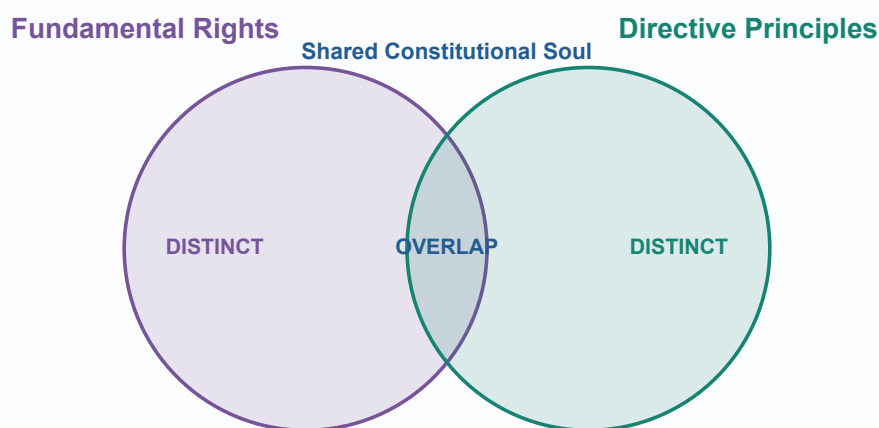
NEWS TRIGGER

Whenever courts weigh welfare legislation against individual liberty, the underlying question is the same one the framers faced: how do political and socio-economic democracy coexist in one Constitution?

INTRO & ORIGIN

Fundamental Rights (Part III) secure political democracy through justiciable, largely negative restraints on the State. Directive Principles (Part IV) secure social and economic democracy through non-justiciable, positive instructions to the State. Both are described as forming the 'soul' of the Constitution, but they operate through opposite legal mechanisms.

The distinction is not a hierarchy of importance; Ambedkar and Austin both treated DPSP and FR as complementary halves of a single constitutional philosophy rather than as rival codes.

FR AND DPSP - DISTINCT MECHANISMS, SHARED PURPOSE**Fundamental Rights**

- Justiciable
- Political democracy
- Negative - restrain the State
- Auto-enforced, no legislation needed
- Court can void a violating law

Shared Constitutional Soul

- Both amendable under Article 368
- Both flow from the Preamble's ideals
- Both used together to judge constitutional validity

Directive Principles

- Non-justiciable
- Social and economic democracy
- Positive - direct State action
- Needs legislation to implement
- Court cannot void, but can uphold an implementing law

Fundamental Rights restrain the State; Directive Principles instruct it - together they define constitutional democracy.

KEY DATA

Fundamental Rights	Directive Principles
Justiciable	Non-justiciable
Political democracy	Social and economic democracy
Legal sanction	Moral and political sanction
Court declares a violating law void	Court can uphold a law implementing a directive

STATIC THEORY

- Ambedkar framed the goal of DPSP as 'economic democracy' to complement the political democracy secured by Fundamental Rights.
- M.C. Setalvad described DPSP as acting as an Instrument of Instructions, beacon-lights to courts, background to State action, and an amplification of the Preamble.
- The relationship between the two Parts is not static; it has been repeatedly redefined by the Supreme Court from Champakam Dorairajan (1951) to the present.

MEMORY HOOK

FR = COURT CAN STOP THE STATE. DPSP = COURT CAN ONLY GUIDE THE STATE.

MUST-KNOW FACTS

1. Fundamental Rights are justiciable and secure political democracy; DPSP are non-justiciable and secure social-economic democracy.
2. Ambedkar linked DPSP to the goal of 'economic democracy'.
3. A court cannot strike down a law for failing to implement a DPSP, but can uphold a law that does implement one.

UPSC TRAPS

WRONG: DPSP are less important than Fundamental Rights.

CORRECT: Both are described as forming the philosophy or soul of the Constitution; DPSP are legally weaker, not conceptually lesser.

MAINS ANGLE

Frame FR-DPSP questions around 'two forms of democracy' rather than 'rights versus non-rights' - this framing directly matches the Ambedkar and Austin formulations examiners expect.

STUDY LINK

Polity -> Fundamental Rights -> Part III | Polity
-> Preamble -> Justice, Liberty, Equality

HIGH

The FR-DPSP Case Law Spine: Champakam to Kesavananda

GS-II Polity -
Case Law I

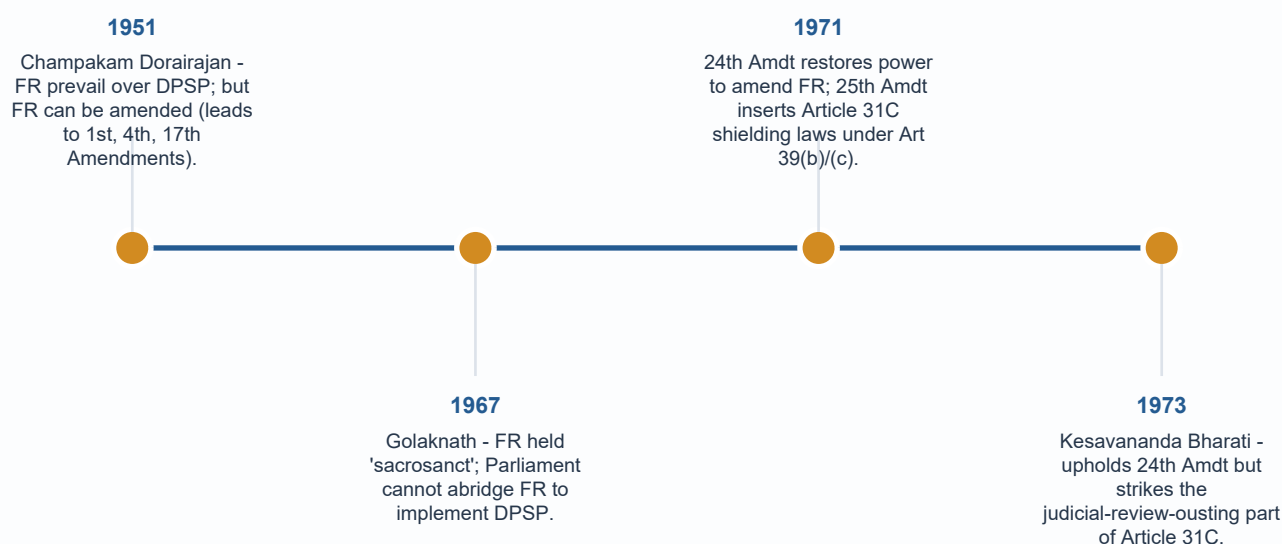
NEWS TRIGGER

Every debate on Parliament's power to amend Fundamental Rights for social justice traces back to this first wave of litigation between 1951 and 1973.

INTRO & ORIGIN

The conflict between FR and DPSP became a live constitutional problem within two years of adoption. Champakam Dorairajan gave FR primacy, Golaknath tried to freeze FR beyond Parliament's reach, and the 24th and 25th Amendments plus Kesavananda Bharati reopened and then permanently reframed the relationship.

This sequence is the single highest-yield case chain in Indian polity and must be memorised in strict chronological order, since each ruling reverses or qualifies the one before it.

CASE-LAW SPINE, PHASE I (1951-1973)

STATIC THEORY

- Champakam Dorairajan (1951) arose from a reservation dispute and established that where FR and DPSP conflict, FR prevail - but it also confirmed FR are amendable, which triggered the 1st, 4th and 17th Amendments.
- Golaknath (1967) reversed course by declaring an amendment itself is 'law' under Article 13, so Parliament could not abridge Fundamental Rights at all, even to implement a DPSP.
- Parliament responded with the 24th Amendment (restoring the power to amend FR, including via Article 368) and the 25th Amendment (inserting Article 31C to protect laws implementing Article 39(b) and (c) from Article 14/19/31 challenge, and declaring such laws non-questionable in court).
- Kesavananda Bharati (1973), decided by a 13-judge bench, upheld the 24th Amendment's core power but struck down the second part of Article 31C - the clause ousting judicial review - because judicial review is itself a basic feature.

MEMORY HOOK

CHAMPAKAM = FR WIN | GOLAKNATH = FR FROZEN | 24th/25th = FR UNFROZEN + 31C SHIELD | KESAVANANDA = SHIELD LIMITED BY REVIEW.

MUST-KNOW FACTS

1. Champakam Dorairajan (1951) held that Fundamental Rights prevail over Directive Principles.
2. Golaknath (1967) held that Parliament cannot abridge Fundamental Rights, treating a constitutional amendment as 'law' under Article 13.
3. The 25th Amendment (1971) inserted Article 31C to shield laws implementing Article 39(b) and (c).
4. Kesavananda Bharati (1973) struck down only the judicial-review-ousting second limb of Article 31C; the first limb survived.

UPSC TRAPS

- WRONG:** Champakam Dorairajan gave Directive Principles primacy over Fundamental Rights.
- CORRECT:** It gave Fundamental Rights primacy; DPSP were held subsidiary.
- WRONG:** Kesavananda Bharati struck down all of Article 31C.
- CORRECT:** It struck down only the second provision (ousting judicial review); the first provision protecting Art 39(b)/(c) laws survived.

MAINS ANGLE

Trace this spine to show how the judiciary progressively balanced Parliament's constituent power against the permanence of Fundamental Rights, culminating in a doctrine of limited amending power rather than an absolute one.

STUDY LINK

Polity -> Amendment and Basic Structure -> Kesavananda Bharati | Polity -> Fundamental Rights -> Article 13

HIGH

The FR-DPSP Case Law Spine: 42nd Amendment to 2024

GS-II Polity -
Case Law II

NEWS TRIGGER

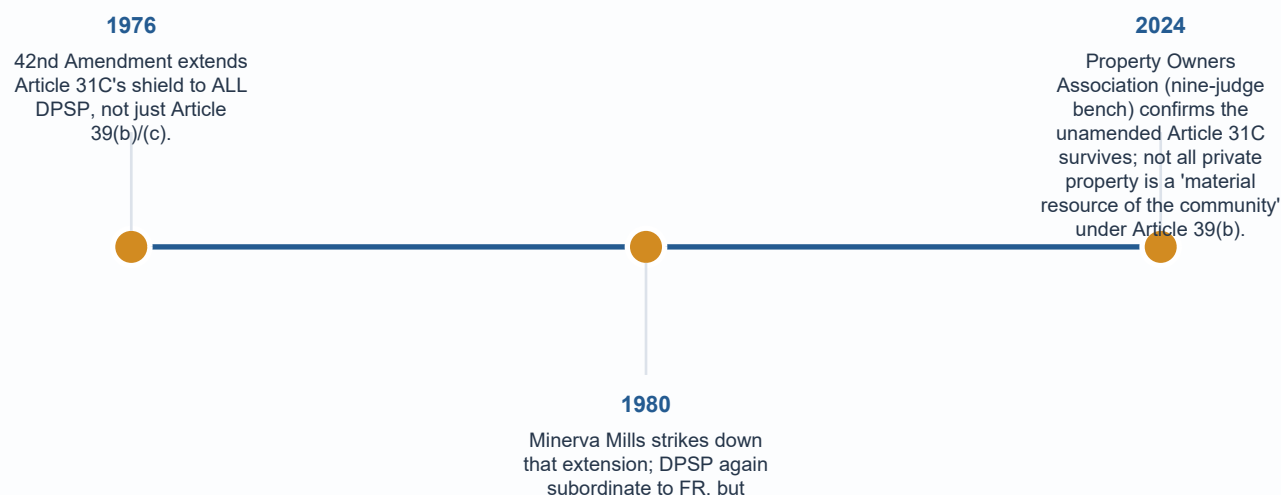
A 2024 nine-judge Supreme Court bench revisited Article 31C fifty years after Kesavananda, confirming this case chain remains a live constitutional question rather than settled history.

INTRO & ORIGIN

The second phase of the FR-DPSP conflict runs from the Emergency-era 42nd Amendment's attempt to give all DPSP primacy over FR, through Minerva Mills' correction, to the 2024 nine-judge ruling that confirms the unamended Article 31C survives but narrows what counts as a 'material resource of the community' under Article 39(b).

This phase shows the doctrine of limited amending power being tested against an even broader claim of DPSP supremacy, and then being calibrated again in the present decade.

CASE-LAW SPINE, PHASE II (1976-2024)



STATIC THEORY

- The 42nd Amendment (1976) tried to make every DPSP override Articles 14, 19 and 31, going far beyond the narrow protection Kesavananda had upheld for Article 39(b) and (c) alone.
- Minerva Mills (1980) struck down this extension, holding that unlimited primacy for DPSP over all Fundamental Rights would destroy the harmony and balance between the two Parts, which is itself part of the basic structure. Article 39(b) and (c) protection under the original Article 31C, however, continued to operate.
- In 2024, a nine-judge bench in Property Owners Association v. State of Maharashtra confirmed that the unamended Article 31C, as upheld in Kesavananda, survives Minerva Mills. On the substantive question, the majority held that not every privately owned asset automatically becomes a 'material resource of the community' under Article 39(b) - the inquiry is contextual, and the ruling arose from a challenge to a Mumbai building redevelopment law (MHADA Act).
- The present constitutional position is that FR retain overall supremacy, but Parliament may still amend FR to implement a DPSP so long as the basic structure is not damaged, and Article 39(b)/(c) laws retain their narrower shield under Article 31C.

MEMORY HOOK

42nd = ALL DPSP OVERRIDE | MINERVA = ONLY 39(b)/(c) SURVIVE | 2024 = 31C SURVIVES, BUT NOT EVERY ASSET IS A 'COMMUNITY RESOURCE'.

MUST-KNOW FACTS

1. The 42nd Amendment (1976) extended Article 31C's shield to all Directive Principles.
2. Minerva Mills (1980) struck down that extension using its famous 'two wheels of a chariot' metaphor for the FR-DPSP balance.
3. The 2024 Property Owners Association ruling (nine-judge bench) held that not all private property is automatically a 'material resource of the community' under Article 39(b).

UPSC TRAPS

WRONG: The 2024 Property Owners Association ruling abolished Article 31C.

CORRECT: It confirmed the unamended Article 31C (as upheld in Kesavananda) survives; only its scope under Article 39(b) was narrowed.

WRONG: Minerva Mills removed all constitutional protection for laws implementing Article 39(b) and (c).

CORRECT: It removed the 42nd Amendment's blanket extension to all DPSP; Article 39(b)/(c) protection continued.

MAINS ANGLE

Use the 2024 ruling as a live illustration that the FR-DPSP balance is not frozen in 1980 - courts continue to recalibrate the scope of Article 39(b) as new property and welfare disputes arise.

STUDY LINK

Polity -> Fundamental Rights -> Article 300A (Right to Property) | Economy -> Land and Housing Policy

HIGH

Minerva Mills - The Two Wheels of the Chariot

GS-II Polity -
Minerva Mills
Deep Dive

NEWS TRIGGER

The 'two wheels of a chariot' metaphor remains the most quoted judicial description of how Fundamental Rights and Directive Principles must move together, and it is frequently tested in both Prelims and Mains.

INTRO & ORIGIN

Minerva Mills (1980) is the definitive statement that neither Fundamental Rights nor Directive Principles can be given absolute primacy over the other, because the Constitution's basic structure requires their harmonious balance, not the domination of one Part over the other.

The case struck down the 42nd Amendment's Section 4 (extending Article 31C to all DPSP) and Section 55 (declaring no amendment questionable in any court), restoring both judicial review and the FR-DPSP equilibrium as basic features.

KEY DATA

Provision struck down	42nd Amendment claim	Minerva Mills correction
Section 55	No amendment questionable in any court	Judicial review is a basic feature and cannot be excluded
Section 4 (Art 31C extension)	All DPSP override Art 14, 19 and 31	Only Art 39(b) and (c) retain that narrow protection

HOW MINERVA MILLS RESTORED THE BALANCE



STATIC THEORY

- The 'two wheels of a chariot' metaphor conveys that a Constitution built only on Fundamental Rights, without directive social goals, or only on Directive Principles, without enforceable rights, would be unbalanced and could not move forward.
- A limited amending power is itself part of the basic structure - Parliament cannot use Article 368 to grant itself unlimited amending power, since that would convert a limited power into an unlimited one.
- Minerva Mills therefore operates at two levels simultaneously: it limits Parliament's amending power in general, and it specifically restores the narrower, pre-1976 version of Article 31C.

MEMORY HOOK

TWO WHEELS OF A CHARIOT: FR MOVES THE CITIZEN'S LIBERTY, DPSP MOVES THE STATE'S WELFARE DUTY - NEITHER WHEEL CAN BE REMOVED.

MUST-KNOW FACTS

1. Minerva Mills (1980) struck down the 42nd Amendment's attempt to make all constitutional amendments non-questionable in court.
2. It also struck down the extension of Article 31C's immunity to all Directive Principles, restoring the narrower Kesavananda-era version.
3. The judgment coined the 'two wheels of a chariot' description of the FR-DPSP relationship.

UPSC TRAPS

WRONG: Minerva Mills held that Directive Principles have no legal effect on Fundamental Rights.

CORRECT: It preserved the narrower protection for laws implementing Article 39(b) and (c) specifically.

MAINS ANGLE

Cite Minerva Mills whenever an answer needs to argue against giving either FR or DPSP unconditional supremacy - it is the strongest judicial authority for a 'balance' argument.

STUDY LINK

Polity -> Amendment and Basic Structure -> Basic Structure Elements | Polity -> Judiciary -> Judicial Review

HIGH**Criticism and Defence of the Directive Principles**GS-II Polity -
DPSP Debate**NEWS TRIGGER**

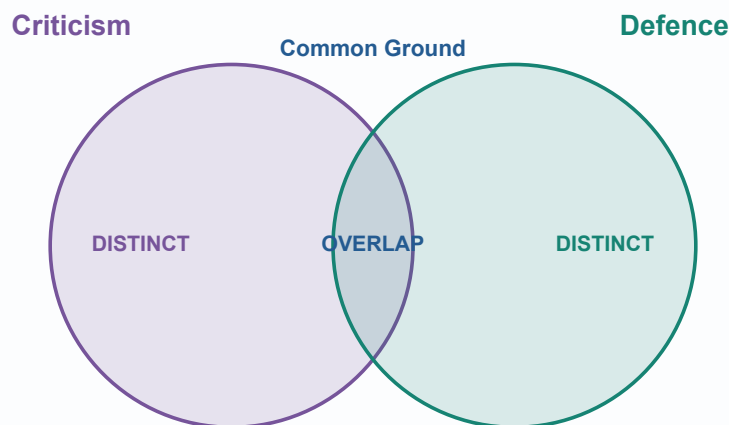
Whenever a government is accused of ignoring its DPSP obligations, the same century-old debate resurfaces: are these directives a genuine moral commitment or merely aspirational language with no teeth?

INTRO & ORIGIN

DPSP attracted sharp criticism from contemporaries who doubted their practical value, but were equally strongly defended by framers and later scholars who saw them as the Constitution's long-term roadmap for a just society.

Both sets of views were expressed close to the time of adoption and remain the standard named citations UPSC uses to test whether a candidate can attribute a specific critique or defence to the correct author.

NAMED CRITICS AND DEFENDERS OF DPSP



Criticism

- K.T. Shah: 'pious superfluities', 'cheque payable when the bank permits'
- T.T. Krishnamachari: 'veritable dustbin of sentiments'
- K.C. Wheare: 'manifesto of aims', 'moral homily'
- N. Srinivasan: illogically arranged
- K. Santhanam: source of Centre-state and executive conflict

Common Ground

- Both sides agree DPSP shape how governments justify policy
- Both sides accept DPSP are not directly enforceable

Defence

- L.M. Singhvi: 'life-giving provisions'
- M.C. Chagla: full implementation = 'heaven on earth'
- Ambedkar: goal is 'economic democracy'
- Granville Austin: DPSP further the 'social revolution'
- B.N. Rau: 'moral precepts... educative value'

Both camps accept DPSP are non-justiciable; they disagree on whether that makes the directives weak or visionary.

STATIC THEORY

- The strongest criticism is that DPSP carry no legal sanction - K.T. Shah's 'cheque payable when the bank permits' captures the fear that implementation depends entirely on a government's discretion.
- Ivor Jennings called DPSP 'pious aspirations' rooted in nineteenth-century English social thought, describing them as 'Fabian Socialism without the socialism'.
- K. Santhanam warned that DPSP could generate friction between the Centre and states, or between the President/Governor and the Council of Ministers, over how vigorously to pursue them.
- Defenders such as M.C. Setalvad saw DPSP performing four functions: acting as an Instrument of Instructions, as beacon-lights to courts, as background to State action, and as an amplification of the Preamble.

MEMORY HOOK

CRITICS SAY 'CHEQUE WITHOUT A BANK'; DEFENDERS SAY 'CONSCIENCE WITHOUT A COURT' - BOTH DESCRIBE THE SAME NON-JUSTICIABLE STATUS.

MUST-KNOW FACTS

1. K.T. Shah called DPSP a 'cheque payable when the bank permits'; T.T. Krishnamachari called them a 'veritable dustbin of sentiments'.
2. K.C. Wheare and Ivor Jennings both criticised DPSP as aspirational rather than legally operative.
3. Ambedkar linked DPSP to the goal of 'economic democracy'; Austin linked them to the 'social revolution'.

UPSC TRAPS

WRONG: K.C. Wheare defended DPSP as 'life-giving provisions'.

CORRECT: That phrase belongs to L.M. Singhvi; Wheare criticised DPSP as a 'manifesto of aims'.

WRONG: All criticism of DPSP came from non-Indian scholars.

CORRECT: Indian members like K.T. Shah, T.T. Krishnamachari, N. Srinivasan and K. Santhanam were prominent critics.

MAINS ANGLE

A balanced answer on DPSP should cite at least one named critic and one named defender, then resolve the tension by pointing to judicial doctrines (Minerva Mills) that keep DPSP influential without making them enforceable.

STUDY LINK

Polity -> Preamble -> Social, Economic and Political Justice | Polity -> Constituent Assembly Debates

HIGH

Implementing DPSP - From Planning Commission to NITI Aayog

GS-II Polity -
DPSP
Implementation

NEWS TRIGGER

Land reform disputes, labour codification and Lok Adalat expansion are all live policy areas that trace their constitutional mandate directly to specific DPSP articles.

INTRO & ORIGIN

Although DPSP cannot be enforced in court, decades of legislation and institutional design have been built to give them practical effect - from land reform and labour law to nationalisation of key industries and the statutory Lok Adalat system.

This implementation record is the strongest Mains evidence that non-justiciability has not meant non-implementation; it has meant implementation through ordinary legislative and executive channels instead of judicial compulsion.

KEY DATA

Policy area	DPSP link	Key measures
Planning	Art 39, 41	Planning Commission (1950) succeeded by NITI Aayog (2015)
Land reform	Art 39(b)	Abolition of intermediaries, tenancy reform, land ceilings, co-operative farming
Labour welfare	Art 39, 42, 43	Minimum Wages 1948, Payment of Wages 1936, Bonus 1965, Factories 1948, Maternity Benefit 1961, Equal Remuneration 1976
Nationalisation	Art 39(b), (c)	LIC (1956), 14 banks (1969), general insurance (1971), Privy Purses abolished (1971)
Legal aid	Art 39A	Legal Services Authorities Act, 1987 - Lok Adalats given statutory, civil-court status with binding awards

STATIC THEORY

- Land reform legislation (abolition of intermediaries, tenancy protection, ceilings, surplus redistribution) directly pursues Article 39(b)'s goal of equitable distribution of material resources.
- The labour law framework - covering wages, bonus, factories, maternity benefit and equal remuneration - operationalises Articles 39, 42 and 43 without requiring a court order for each worker.
- Nationalisation of LIC, 14 major banks, general insurance and abolition of Privy Purses were justified as measures preventing concentration of wealth under Article 39(c).
- The Legal Services Authorities Act, 1987 is the clearest example of a DPSP (Article 39A) becoming a fully justiciable statutory entitlement through ordinary legislation.

MEMORY HOOK

PLANNING (39/41) -> LAND (39b) -> LABOUR (39/42/43) -> NATIONALISATION (39b/c) -> LEGAL AID (39A) - EACH A LEGISLATIVE ROUTE, NOT A COURT ORDER.

MUST-KNOW FACTS

1. The Planning Commission (1950) was replaced by NITI Aayog in 2015.
2. The Legal Services Authorities Act, 1987 gives Lok Adalats civil-court status with binding awards, implementing Article 39A.
3. LIC (1956), 14 banks (1969) and general insurance (1971) were nationalised partly to serve Article 39(b) and (c).

UPSC TRAPS

WRONG: Since DPSP are non-justiciable, they have never been implemented through law.

CORRECT: Extensive land reform, labour and nationalisation legislation implements DPSP through ordinary statutes, not court orders.

ARTICLE TO STATUTE LINKAGES

DPSP Article	Implementing Law	Why It Matters
39(d) - equal pay for equal work	Equal Remuneration Act, 1976	Converts a directive into an enforceable statutory right
39A - free legal aid	Legal Services Authorities Act, 1987	Created Lok Adalats with binding, civil-court-equivalent awards
43A - workers' participation	Company law provisions on worker directors (limited application)	Shows partial, evolving implementation rather than a completed mandate
48A - environment	Wildlife Protection Act 1972; Forest laws	Read together with Article 21 in environmental jurisprudence

MAINS ANGLE

Use this implementation record to rebut the 'DPSP are toothless' critique - show that non-justiciability shifted the enforcement route to Parliament and the executive rather than eliminating enforcement altogether.

STUDY LINK

Economy -> Land Reforms and Labour Codes
| Polity -> NITI Aayog -> Planning Evolution

HIGH**Mains Framework: Writing on Directive Principles**

GS-II Mains
Polity - Answer
Writing

NEWS TRIGGER

UCC debates, cow-slaughter litigation, workers'-participation proposals and Lok Adalat expansion show that DPSP questions rarely test bare article numbers - they test the ability to connect a directive to a live governance debate.

INTRO & ORIGIN

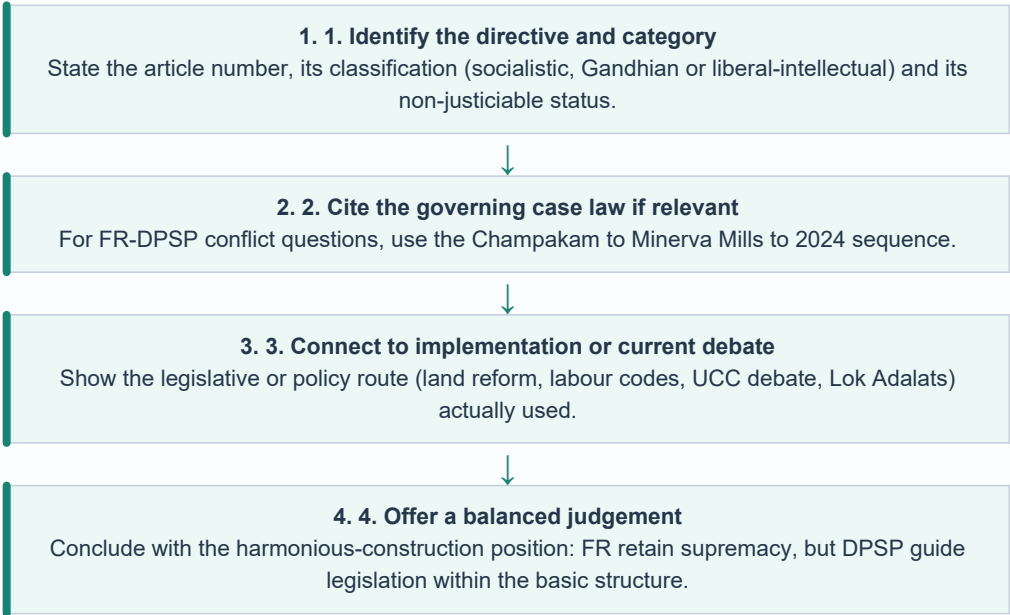
A high-scoring DPSP answer identifies the specific directive, states its non-justiciable status, cites the relevant case law where the question calls for it, and evaluates the present-day implementation or tension rather than merely reproducing the article's text.

This four-part method mirrors how UPSC model answers on DPSP have been structured across recent cycles - concept, classification/case law, contemporary link, and judgement.

KEY DATA

Question theme	Core argument	Value addition
'Cheque payable when the bank permits' - discuss	Non-justiciability limits enforceability, not relevance	Cite Minerva Mills' 'two wheels of a chariot' and legal-aid implementation
Harmonious construction of FR and DPSP	Champakam to Minerva Mills to Property Owners Association	Show 2024 ruling keeps the balance evolving, not frozen
Uniform Civil Code (Art 44)	Constitutional mandate versus pluralism	Reference state-level UCC moves as a live governance debate
DPSP as a welfare-state roadmap	Land reform, labour codes, Lok Adalats as implementation evidence	Distinguish moral sanction from legal sanction throughout

THE FOUR-STEP DPSP ANSWER METHOD



STATIC THEORY

- Examiners reward answers that avoid treating DPSP as a static 1949 list - showing awareness of the 42nd, 44th, 86th and 97th Amendments demonstrates a developed understanding.
- For conflict-based questions, the safest position is 'harmonious construction': neither Part is absolute, and the basic-structure doctrine ensures the balance cannot be permanently upset by either Parliament or the courts alone.
- Contemporary anchors (UCC debates, environmental litigation under Article 48A read with Article 21, the 2024 Property Owners Association ruling) should illustrate constitutional principles, not replace the historical and case-law evidence.

MEMORY HOOK

IDENTIFY -> CASE LAW -> IMPLEMENTATION -> BALANCED JUDGEMENT.

MUST-KNOW FACTS

1. A complete DPSP Mains answer states the article, its category, its justiciability status and at least one implementation example.
2. The safest conclusion for any FR-DPSP conflict question is 'harmonious construction within the basic structure', not absolute primacy for either Part.

UPSC TRAPS

WRONG: A Mains answer should list every DPSP article relevant to the topic.

CORRECT: Select only the directives relevant to the specific directive word and thesis of the question.

MAINS ANGLE

Model thesis: DPSP transform the Constitution from a mere rights-charter into a blueprint for a welfare state, enforceable not by courts but by legislative action, electoral accountability and constitutional interpretation.

STUDY LINK

Essay -> Welfare State and Constitutionalism |
GS-II -> Government Policies and
Interventions

End of Register Notes — UPSC Agent / Copilot CLI